UMKC Impact & Translation Series

Protecting Your Innovation: A Guide to Intellectual Property at UMKC

A Whitepaper for UMKC Faculty Researchers and Graduate Students

When you make a breakthrough in the lab or develop a novel solution to a problem, one important question follows: could this work create impact beyond the university?

In many cases, the answer depends on whether that work can be protected, shared appropriately, and developed with external partners. Intellectual property (IP) is not just a legal step. It is part of how research moves from discovery into real-world use.

At UMKC, we want researchers and innovators to feel empowered and supported as they navigate the path from idea to impact. That path starts with understanding the different types of IP, and how each plays a role in protecting your discovery.

This does not mean every project needs a patent or a startup. It means that understanding protection early helps preserve your options for how your work could create impact.

UITS Whitepaper

This whitepaper is part of the **UMKC Impact & Translation Series (UITS)** - a set of short videos and supporting materials designed to help faculty think more clearly about how their work can move beyond the university and into real-world use.

The videos introduce core ideas. This document goes deeper on one of those ideas: **how intellectual property protection supports the translation of research into real-world use.**

What Is Intellectual Property (IP), and Why Should You Care?

Intellectual property refers to creations of the mind: inventions, methods, artistic works, designs, even brand names. Unlike physical property, IP is intangible, but just as valuable. If you've ever written software, engineered a device, designed a study protocol, or created an algorithm, you've likely created IP.

For university researchers, IP does more than secure credit. It enables partnerships, supports investment in development, and increases the likelihood that your work can be used outside the university. Knowing which form of protection applies to your work is the first step.

The Four Key Types of IP

Different types of IP serve different roles depending on how your work might move toward use. At UMKC, the most common types of IP protections you might encounter include:

Patents

Patents apply to inventions - things like novel devices, chemical compounds, or processes. A patent gives you (and the university, as co-owner) the exclusive right to make, use, or license the invention for 20 years from the date of filing. To be eligible, the invention must be new, useful, and non-obvious, three key criteria the U.S. Patent and Trademark Office (USPTO) will assess.

There are two main types: provisional patents, which secure a filing date with a simpler application, and non-provisional patents, which are the full applications reviewed by the USPTO. Provisional patents are valid for one year and give you time to test your innovation or attract partners before committing to the full filing.

Copyrights

If your work involves writing, code, graphics, training materials, or digital content, copyright may apply. Copyrights protect the expression of ideas, not the idea itself, and are automatically granted when a work is created in tangible form. However, registering the copyright provides added legal strength, especially if you need to defend your rights in court.

Trademarks

Trademarks protect the words, logos, or symbols you use to identify a product or service. While not always relevant early in academic research, trademarks become important when you're branding a product, spinout company, or platform. A registered trademark provides national protection and makes it easier to enforce your brand identity.

Trade Secrets

Some innovations can't or shouldn't be patented. Maybe they're not patentable, or maybe keeping them confidential offers more competitive advantage. In those cases, trade secrets (confidential information like formulas, processes, or methods) can be protected by keeping them secure through contracts and internal controls. At UMKC, if a research tool or method falls into this category, our Office of Technology Transfer can advise on the best way to keep it protected while still enabling collaboration.

Making Smart IP Decisions Early

One of the most important decisions you will make is whether to protect your work before sharing it publicly. Here's why that matters.

When you publicly disclose your work through a journal article, poster, or conference presentation, you may inadvertently lose your ability to secure a patent. In the U.S., you have one year after disclosure to file, but in many other countries, publication removes the possibility of patent protection entirely. This is one of the most common ways researchers unintentionally lose future options for their work, and why we encourage researchers to contact the Office of Technology Transfer before public dissemination.

A key part of early-stage protection is conducting a prior art search - a process where we look for existing patents, publications, or products that may overlap with your innovation. This helps determine novelty and strengthen your application. It also helps ensure we're investing university resources into innovations with clear commercial potential.

Working with UMKC's Offices: Who Does What?

Navigating IP doesn't have to be overwhelming. UMKC offers support through two key offices, and each plays a distinct role:

- The **Office of Technology Transfer (OTT)**: Focuses on IP management such as filing patents, reviewing invention disclosures, and tracking legal requirements. If you're filing an invention disclosure or need to understand your rights as a university researcher, this is your starting point.
- The **Office of Commercialization (OC)**: Supports the broader innovation journey like helping you identify partners, assess the market potential of your invention, explore startup opportunities, and prepare materials to promote your innovation to potential licensees.

Engaging early with both teams sets your project up for success. We can help you explore whether your invention is a good candidate for a patent, whether a startup might be viable, and how to structure agreements with collaborators or sponsors.

Common Questions from UMKC Researchers

What if I'm working with a company or another university? - Joint research can lead to joint IP and that can complicate things. We recommend establishing clear collaboration agreements upfront that outline who owns what, how decisions will be made, and who pays for protection costs. We can help structure these agreements.

Guiding Question:

What aspects of your work need to be protected to enable real-world impact, and when do those protection decisions need to happen?

Can I still publish if I want a patent? - Yes - as long as you disclose your invention to us first and we file a provisional application before your work goes public. This is a common process, and we'll work with your publishing timeline.

What if my invention isn't a good fit for a patent? - That's okay. Not every innovation needs a patent to have value. We can help explore other forms of protection and consider licensing, trade secrets, or other commercialization pathways.

Taking the Next Step: What Should You Do?

If you think you've created something new - or are just starting a project with commercial potential - reach out to us. If your work may have relevance beyond the university, here are practical next steps:

1. **Submit an Invention Disclosure to the Office of Technology Transfer**. This confidential form tells us what you've created, when, and how.
2. **Schedule a Conversation with the Office of Commercialization** to discuss possible next steps, including whether a market assessment, partner outreach, or startup discussion is warranted.
3. **Plan Your Timeline around your IP goals.** If you have a paper under review or a conference coming up, we'll help make sure your IP is protected in time.

Conclusion: Your Innovation Deserves Protection

Your research already has value. The question is how that value reaches beyond the university.

Whether you're developing a new therapy, coding a novel algorithm, or creating a training platform, the right IP strategy can make all the difference in who benefits from your work and how far it goes.

Let us help you navigate the process. Start with a conversation and let your innovation thrive.

Resources & Contacts

UMKC Office of Commercialization
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